

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
ANDREW PIGORS,
VS.

Plaintiff,
EMILY WATSON,
Defendant.

File No: 2024-001507-DC

Hon. Jenny L. McNeill

CUSTODY & PARENTING TIME & CHILD SUPPORT ORDER -
FOLLOWING CUSTODY HEARING

Andrew Pigors

Self-Represented Litigant

Jennifer Barnes (P55406)

Attorney for Defendant

Both parties appeared for a Trial regarding Custody, Parenting Time and Child Support (including Defendant's Objection to the Ex Parte FIG Order) which was held on July 17, 2024 in regards to the minor child, Lincoln Watson. Plaintiff filed six (6) Motions on July 16, 2024, the day before trial, identified as: Motion for Parenting Time and Contempt of Court; Motion for Protective Order and Sanctions; Motion to Quash Subpoenas and for Protective Order; Motion to Dismiss Objections in Custody Case; Motion to Impeach Witness; and a Motion to Modify Parenting Time and Drop-off Arrangement.

A hearing was held; and the Court rendered an oral opinion. The Defendant submitted an order under the 7 day rule, using parts of the rulings the Court made regarding the best interest factors; the Plaintiff filed an objection, but failed to follow the Court rules, in stating with specificity what parts of the order he objected to and did not provide an order. The Plaintiff appears to be attempting to relitigate the matter.

IT IS HEREBY ORDERED all of the Plaintiff's Motions are DENIED as they are untimely, repetitive and the issues were addressed at trial. The Court orders:

CUSTODY

IT IS HEREBY ORDERED that Defendant/Mother shall have sole physical custody of the minor child. The Court's findings are as stated on the record.

IT IS FURTHER ORDERED that the Defendant/Mother shall have sole legal custody of the minor child. The Court's findings are as stated on the record.

Except otherwise provided in this Order, the domicile of the minor child(ren) shall not be removed from the State of Michigan without the written consent of this Court, and both parties shall forthwith notify Muskegon County Family Court Services of any changes in the residence address of said child(ren).

A parent whose custody or parenting time of a child is governed by this order shall not change the legal residence of the child except in compliance with section 11 of the "Child Custody Act of 1970", 1970 PA 91, MCL 722.31.

PARENTING TIME

IT IS HEREBY ORDERED that the Plaintiff/Father shall exercise parenting time on alternating weekends. Parenting shall be as follows:

a. During the School Year - beginning September 1st until school discharges for the summer:

a. Friday at 5:30pm to Sunday at 5:30 pm

b. During the Summer Break - beginning with the Plaintiff's first alternating weekend after school discharges for the summer:

a. Friday at 5:30 pm to Tuesday at 5:30 pm

c. Parenting Time exchanges are to occur at the City of Muskegon Police Department. Both Parties may utilize third parties to conduct the parenting time exchanges.

d.

e. There shall be NO communication at all during the parenting time exchanges.

IT IS FURTHER ORDERED that the Defendant may take the minor child on her scheduled vacation cruise in the fall/winter of 2024, which likely involves a Country that does not participate in the Hague Convention. Defendant shall provide the Plaintiff with the dates for the vacation as soon as possible. If the vacation affects Plaintiff's scheduled parenting time, Defendant may still take the minor child on the vacation but shall provide Plaintiff with make-up parenting time during Defendant's next parenting time weekend.

IT IS FURTHER ORDERED that the parties shall exercise an alternating Holiday Parenting Time schedule as follows:

Mother in Odd Numbered Years/Father in Even Numbered Years Easter Weekend Friday at 5:30 pm to Sunday at 5:30 pm

Independence Day July 3 at 5:30 pm until July 5 at 9 am

Thanksgiving Day Weekend Wednesday at 5:30 pm to Sunday at 5:30 pm

2nd Split Christmas Break

the day

Spring Break (Parenting time shall commence at 5:30 0 pm school recesses and end at 5:30 pm the day before school resumes.)

Mother in Even Numbered Years/Father in Odd Numbered Years

Memorial Day Weekend Friday at 5:30 pm until Monday at 5:30 pm Labor Day Weekend Friday at 5:30 pm until Monday at 5:30 pm 1st Split Christmas Break

Children's Birthdays 9 am to 9 pm on non-school day and 4:30 pm to 8:30 pm on school day.

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IT IS SO ORDERED

FOC Approval

Submitted Under 7 Day Submission by:

Jennifer L. Barnes, P55406

Attorney for Defendant

Hon. Jenny L. McNeill, P58235 Circuit Court Judge

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2024-001507-DCIT IS FURTHER ORDERED that the domicile or residence of the minor child shall be located in Michigan. The domicile of the minor child shall not be moved from Michigan without the approval of the Judge who awarded custody or the Judge's successor. The person awarded custody must promptly notify the Friend of the Court in writing when the minor child is moved to another address.

IT IS FURTHER ORDERED that a parent whose custody or parenting time of the minor child is governed by this Judgment shall not change the legal residence of the child except in compliance with Section 11 of the "Child Custody Act of 1970," 1970 Public Act 91, being MCL 722.31, et seq., which provides that the legal residence of the minor child shall not be changed to a location that is more than 100 miles from the child's legal residence at the time of this Judgment, unless: (i) the other parent consents to the change; (ii) sole legal custody is granted to only one of the parents; (iii) the court permits the residence change after complying with subsection (4) of Section 11 of the Child Custody Act of 1970, or (iv) if an agreement of the parties is set forth in this Judgment as to how a change in the minor child's legal residence will be handled and the change in residence is handled in compliance with said agreement.

IT IS FURTHER ORDERED that unless otherwise ordered by the Court, or consented to in writing by both parties, neither parent shall exercise parenting time in a foreign country/nation that is not a party to the Hague Convention on the Civil Aspects of International Child Abduction.

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competitions, scrimmages, meets, ect., with timely presentation to said activity, in proper attire, and with all equipment necessary to actively participate. The parties shall equally share in the expenses related to the extra-curricular activities.

IT IS FURTHER ORDERED that when either party secures or loses employment or obtains a substantially greater or lesser wage or salary from his or her present or future employment, they shall notify the Muskegon County Friend of the Court within ten (10) days in order that the amount of support may be adjusted accordingly, in the event that a formal child support obligation payable through the Friend of the Court has been established or exists at any such relevant time.

IT IS FURTHER ORDERED that the Defendant shall claim the minor child on her annual tax returns.

IT IS FURTHER ORDERED that both Plaintiff and Defendant shall notify one another and the Office of the Friend of the Court within twenty-one (21) days of any change of address so long as this Judgment of Custody, Parenting Time, and Child Support remains operative.

IT IS FURTHER ORDERED that since Defendant has been granted sole legal and sole physical custody and pursuant to this Court's Order from the Bench, Defendant may take the minor child on her scheduled vacation cruise in the fall/winter of 2024, which likely involves a Country that does not participate in the Hague Convention. Defendant shall provide Plaintiff with the dates for the vacation as soon as possible. If the vacation affects Plaintiff's scheduled parenting time,

Defendant may still take the minor child on the vacation but shall provide Plaintiff with make-up parenting time during Defendant's next parenting time weekend.

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2024-001507-DCIT IS FURTHER ORDERED that Defendant's Attorney of Record shall recalculate child support and shall prepare a Uniform Child Support Order with an effective date of July 17, 2024, based upon the following modifications: childcare expenses set at zero dollars; Defendant's monthly income shall be the same amount; Defendant shall claim the minor child on her annual taxes as Plaintiff is unemployed; Defendant shall be given credit for her other minor child; Defendant shall be identified as head of household; Plaintiff's monthly income shall be calculated as \$2,115.00 per month from self-employment; Plaintiff shall be identified as filing his taxes as single.

IT IS FURTHER ORDERED that the parties shall keep each other informed of the name and address of his or her current source of income and of any health care coverage that is available to him or her as a benefit of employment or that is maintained by him or her; the name of the insurance company, health care organization, or health maintenance organization; the policy, certificate or contract number; and the names and birth dates of the persons for whose benefit he or she maintains health care coverage under the policy, certificate or contract.

IT IS FURTHER ORDERED that all health care services including, but not limited to, orthodontia, optical, and prescription expenses of the minor child which are not covered by insurance, including those medical bills accumulated to date, shall be paid pursuant to the uninsured medical cost percentages outlined in the attached Uniform Child Support Order.

IT IS FURTHER ORDERED that the parties shall encourage the minor child to participate in extra-curricular activities. The party exercising parenting time shall be responsible for ensuring that the minor child attends any practices, games,

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2024-001507-DCIT IS FURTHER ORDERED that Defendant/Mother shall be awarded sole legal custody of the minor child.

IT IS FURTHER ORDERED that the parties shall continue to communicate regarding the minor child through the AppClose parenting application. The communication shall only be regarding the minor child and shall only be regarding emergencies.

IT IS FURTHER ORDERED that Plaintiff/Father shall exercise parenting time on alternating weekends. For the summers, beginning with Plaintiff's first alternating weekend after school discharges for the summer, Plaintiff shall exercise alternating weekends from Friday at 5:30 p.m. until Tuesday at 5:30 p.m. with parenting time exchanges occurring at the City of Muskegon Police Department. Effective September 1st each year, until school discharges for the summer, Plaintiff's alternating weekends shall be Friday at 5:30 p.m. until Sunday at 5:30 p.m. with parenting time exchanges occurring at the City of Muskegon Police Department. Both parties may utilize third- parties to conduct the parenting time exchanges. There shall be no communication at all during the parenting time exchanges.

IT IS FURTHER ORDERED that since the parties have been exercising week on week off parenting time, due to the temporary Order, and since the minor child is currently with

Plaintiff/Father for parenting time, and despite this Order being effective July 17, 2024, parenting time shall be as follows:

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Defendant/Mother testified that she encourages a close and continuing parent-child relationship between Plaintiff/Father and the minor child. The Court does not appreciate that Defendant/Mother withheld the minor child from Plaintiff/Father for a period of time, but the Court cannot hold it against Defendant/Mother as it appears she has tried to facilitate a relationship but does not understand how to, when Plaintiff/Father expects to always get his way. This Factor favors Defendant/Mother.

k. Domestic violence regardless of whether the violence was directed against or witnessed by the children.

This factor raises concerns regarding Plaintiff's/Father's behavior. The Court is specifically referencing the PPO, the police reports, and the testimony regarding Plaintiff/Father having a camera that he intended to send to Defendant's/Mother's home in a bag to monitor the activities at Defendant's/Mother's home. This Factor favors Defendant/Mother.

1. Any other factor considered as relevant to this custody dispute.

This Factor is a combination of all of the testimony and evidence. The Court is specifically referencing Plaintiff's/Father's inability to see how his behavior impacts the minor child; Plaintiff's/Father's inability to see how his behavior impacts the Defendant/Mother; along Plaintiff's/Father's behavior at work and the complaints filed by five (5) co-workers that led to his termination.

IT IS FURTHER ORDERED that the Court finds by clear and convincing evidence that Defendant/Mother shall have sole physical custody of the minor child.

IT IS FURTHER ORDERED that the Court finds by clear and convincing evidence that there is no foreseeable way that these parties can cooperate together to address legal custody concerns.

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2024-001507-DC Defendant/Mother testified that she encourages a close and continuing parent-child relationship between Plaintiff/Father and the minor child. The Court does not appreciate that Defendant/Mother withheld the minor child from Plaintiff/Father for a period of time, but the Court cannot hold it against Defendant/Mother as it appears she has tried to facilitate a relationship but does not understand how to, when Plaintiff/Father expects to always get his way. This Factor favors Defendant/Mother.

k. Domestic violence regardless of whether the violence was directed against or witnessed by the children.

This factor raises concerns regarding Plaintiff's/Father's behavior. The Court is specifically referencing the PPO, the police reports, and the testimony regarding Plaintiff/Father having a camera that he intended to send to Defendant's/Mother's home in a bag to monitor the activities at Defendant's/Mother's home. This Factor favors Defendant/Mother.

l. Any other factor considered as relevant to this custody dispute.

This Factor is a combination of all of the testimony and evidence. The Court is specifically referencing Plaintiff's/Father's inability to see how his behavior impacts the minor child; Plaintiff's/Father's inability to see how his behavior impacts the Defendant/Mother; along Plaintiff's/Father's behavior at work and the complaints filed by five (5) co-workers that led to his termination.

IT IS FURTHER ORDERED that the Court finds by clear and convincing evidence that Defendant/Mother shall have sole physical custody of the minor child.

IT IS FURTHER ORDERED that the Court finds by clear and convincing evidence that there is no foreseeable way that these parties can cooperate together to address legal custody concerns.

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2024-001507-DC parties separated. It is unclear as to why Plaintiff/Father has decided to choose a different childcare arrangement for the minor child. Plaintiff/Father is not working so the Court questions why Plaintiff/Father needs childcare for the child. The Court finds that the minor child has a strong bond with Defendant's/Mother's family. This Factor favors Defendant/Mother.

i. The reasonable preferences of the child, if the court deems the child to be of sufficient age to express preference.

The Court finds that the minor child is of insufficient age to express a preference.

This factor is not applicable.

j. The willingness and ability of each of the parties involved to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent.

This factor is significant to the Court. The Court questioned Plaintiff/Father as to whether he facilitates a close relationship between the minor child and Defendant/Mother. Plaintiff's/Father's response was that he does not discourage it, which means to the Court that he does not encourage it. Plaintiff/Father also complained about the minor child saying "momma." It is significant to the Court that Plaintiff/Father calls multiple police departments in the same day to raise issues against Defendant/Mother. Plaintiff/Father demands information from Defendant/Mother, in the AppClose transcript, that he has no right to question. Plaintiff/Father clearly gets frustrated when he does not get the answer he wants. Plaintiff/Father believes that it is his way or the highway, which is also evidenced by the multiple Motions he has filed throughout the course of this case and for which the Court has instructed him the Motions were frivolous and not to file any additional frivolous Motions.

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2024-001507-DCf. The moral fitness of the parties involved.

Plaintiff's/Father's criminal record that was testified to is old and not significant to the Court.

There is no criminal history regarding Defendant/Mother. The real concern is the moral fitness of the parties as to how they will function as a parent.

The Court has reviewed the police reports that were admitted into evidence and has reviewed the communications contained in the AppClose transcript that was admitted into evidence, Plaintiff/Father fails to understand how his behavior, such as calling multiple police departments on the same day regarding Defendant/Mother, and how he speaks to Defendant/Mother in the AppClose transcript, amount to badgering and harassment inflicted on Defendant/Mother.

Plaintiff does not appreciate that his behaviors are creating the problem. This Factor favors Defendant/Mother.

g. The mental and physical health of the parties involved.

The testimony was that Plaintiff/Father has been diagnosed with ADD for which he does not take prescribed medications but does participate in counseling once a month. Plaintiff/Father utilizes marijuana to medicate his ADD. Marijuana is legal, but it is concerning as to whether or not the marijuana laws are being followed given the child gets out of the car and smells of marijuana. Defendant/Mother does not have any mental or physical health concerns. This Factor slightly favors Defendant/Mother.

h. The home, school, and community record of the child.

The child is young and is not yet enrolled in school. The testimony was that the minor child and his sibling have a very close bond. Regarding the community record, it appears that the maternal grandmother has been providing childcare both when the parties were still in a relationship and has continued to provide childcare since the

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